

BEFORE THE FEDERAL MARITIME COMMISSION

Washington, D.C.

DOCKET NO. 25-24

SOUTHERN INTERNATIONAL CO., LTD.,

Complainant,

DAYNAMEZ GROUP OF COMPANIES LLC,

Respondent.

**RESPONDENT'S REPLY TO COMPLAINANT'S OPPOSITION TO RESPONDENT'S MOTION TO
DISMISS THE SECOND AMENDED COMPLAINT**

Comes Now the Respondent and files this its Reply to the Complainant's Opposition to Respondent's Motion to the Second Amended Complaint. The Response does nothing except restate its defense of its deficient pleadings as it adds nothing new to state that the Respondent is an NVOCC. What is interesting is that the Complainant does not even address the fact that it owes money to the Plaintiff other than to state that the issue should be deferred to a later date.

1. The Third Complaint still fails to set forth a Complaint in a concise manner. The Response states that the Respondent is now complaining about too much detail. It is not normal practice to have one page allegations with attachments as a singularly numbered allegation. The aforementioned paragraphs should be broken down into manageable components/paragraphs. The Respondent is merely asking that the Complainant prepare its document properly so that the Respondent can respond if necessary. The more detailed version could be filed by breaking them down into reasonable parts.

1. The Complainant still has not alleged enough to sustain that the Respondent is an NVOCC. It relies on a web site that talks about outbound cargo, not inbound cargo. Again, it is incredible to think the Complainant was unaware that the Respondent was not an NVOCC. Obviously SIC is a large, sophisticated entity that knew or should have known the status of Daynamez as SIC is licensed by the FMC. If SIC was so sure that it was going to use Daynamez as an NVOCC, why is that not in the contract attached to the Second Amended Complaint? The Respondent does not address the issue other than to state that it is an agency agreement not a sales agreement. Again, this is a standard form created by SIC. Any ambiguity in a contract is construed against the maker of the agreement. The rule applies broadly across jurisdictions, with courts consistently stating that "any ambiguities in meaning when construing the language of a contract are to be construed against the drafter of the contract" *First Financial Northwest, Inc. v. Laver*, 410 So.3d 1 (2025).
2. The Court did state that the Second Amended Complaint was deficient and merely gave SIC another chance to get it right. The Court has found that 2 versions are inadequate. The ALJ devoted several pages in her opinion on the inadequacy of the Complaint as to the issue of whether or not the Respondent was acting as an NVOCC. The undersigned is allowed to advocate for his client.
3. Complainants bear the burden of demonstrating that the Commission has jurisdiction to adjudicate their claims." *Crocus Investments, LLC v. Marine Transport Logistics, Inc.*, 1 F.M.C.2d 403, 406, 2019 FMC LEXIS 44 at *10 (FMC July 16, 2019) (citing *River Parishes Co., Inc. v. Ormet Primary Aluminum Corp.*, 28 S.R.R. 188, 201 (ALJ 1998), *aff'd* 28 S.R.R. 751 (FMC 1999))." The Complainant has failed to do so.
4. The downstream argument is valid as there is nothing in the Complaint disputing that there were actual licensed NVOCCs involved in the shipment. How could SIC have thought that it was dealing with the Respondent as an NVOCC when the bills of lading were issued by companies in Vietnam? After alleged shipments exceeding 500, it should have occurred to SIC that Daymanez is not an NVOCC. There is nothing on the record to indicate that the Respondent paid money directly to a steamship company. There were NVOCCs that were involved in the matter in Asia including Super Cargo Service, and Kargosmart Vietnam that operate out of Vietnam.
5. There were exchanges of money and the Respondent is currently owed money. Attached is an affidavit identifying the documents that show a final reconciliation with the Respondent being owed money by the Complainant. See affidavit of
6. Any argument about the Respondent holding itself out as an NVOCC fails as it was not licensed as an NVOCC

and SIC knew or should have known that it was not an NVOCC. Swearing about a section of the website does not prove that the Respondent was acting as an NVOCC. As before, the website discusses outbound cargo, not inbound cargo. Why would the SIC be unaware that the Respondent is not an NVOCC? The Complainant is licensed so why would it assume that an unlicensed entity would be acting as an NVOCC on inbound shipments from Vietnam when there were already NVOCCs involved with the shipment. Signing an affidavit does not make a shift in the matter, as the Respondent did not have a license, was not designated as an NVOCC on any bills of lading, no evidence of booking with an ocean carrier, SIC along with other NVOCCs were involved with the shipments, the website deals with inbound cargo, and the agency agreement does not identify the Respondent as an NVOCC. This is not confusing and is straight forward. The Respondent was not an NVOCC on any of these shipments, although the Complainant, Super Cargo Service, and Kargosmart Vietnam are all NVOCCs that operate out of Vietnam.

7. This is a questionable claim, and the Respondent attached documentation to its Response in which the Complainant acknowledges that it owes the Respondent money. Attached is an affidavit identifying the three documents that show that there was no money owed as per communications with the Complainant. One of them is in October 2024. As this is a dispositive Motion, the Respondent can go outside of the 4 corners of the Third Complaint. The documents are dispositive and demonstrate that the Complainant has no case.

Wherefor the Respondent would ask that the case be dismissed with prejudice.

Dated: March 13th, 2026

CERTIFICATE OF SERVICE

I certify that on the 13th day of March 2026 a true and correct copy of the foregoing Notice of Service was hereby served by electronic mail upon the party of record for the Complainant, in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020.

Served to:

Mr. Nguyen Tien Phuong Southern International Co.,
LLC

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Dated:

March 13, 2026

Respectfully submitted, Daniel W. Raab, P.A.

s/Daniel W. Raab

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8.

I, Zia Kamali, being duly sworn on oath doth depose and states the following:

1. I have personal knowledge as to all items set forth in this affidavit.
2. I am the records custodian and manager for Daynamez Group of Companies LLC.
3. Attached to this affidavit are 3 correspondences between Daynamez Group of Companies LLC. and Southern International Co., Ltd
4. These are records kept in the ordinary course of business by Daynamez Group of Companies LLC.
5. In each of these correspondence Southern International Co., Ltd has acknowledged owing money to Daynamez Group of Companies LLC

VERIFICATION

1. I, Zia Kamali declare under penalty of perjury under the laws of the United States that I am the *Manager* of Daynamez Group of Companies LLC. and that I have read the foregoing Affidavit and that the statements made therein are true and correct to the best of my knowledge, information, and belief.

Executed on this 13th day of March 2026, in Fairfax, Virginia

Manager

Daynamez Group of Companies LLC.

SIGNATURE:

 41000 Legato Rd
Suite 1100
Fairfax VA 22033
